Rex Welsh, Vernon Berrangé, Sydney Kentridge, Tony O'Dowd, and G. Nicholas. On the opening day of the trial, they displayed their combativeness with a risky legal maneuver that a number of us had decided on in consultation with the lawyers. Issy Maisels rose dramatically and applied for the recusal of Judges Ludorf and Rumpff on the grounds that both had conflicts of interest that prevented them from being fair arbiters of our case. There was an audible murmur in the courtroom. The defense contended that Rumpff, as the judge at the 1952 Defiance Trial, had already adjudicated on certain aspects of the present indictment and therefore it was not in the interest of justice that he try this case. We argued that Ludorf was prejudiced because he had represented the government in 1954 as a lawyer for the police when Harold Wolpe had sought a court interdict to eject the police from a meeting of the Congress of the People.

This was a dangerous strategy, for we could easily win this legal battle but lose the war. Although we regarded both Ludorf and Rumpff as strong supporters of the National Party, there were far worse judges in the country who could replace them. In fact, while we were keen to have Ludorf step down, we secretly hoped that Rumpff, whom we respected as an honest broker, would decide not to recuse himself. Rumpff always stood for law, no matter what his own political opinions might be, and we were convinced that when it came to law, we could only be found innocent.

That Monday, the atmosphere was expectant when the three red-robed judges marched into the courtroom. Judge Ludorf announced that he would withdraw, adding that he had completely forgotten about the previous case. But Rumpff refused to recuse himself and instead offered the assurance that his judgment in the Defiance case would have no influence on him in this one. To replace Ludorf, the state appointed Mr. Justice Bekker, a man we liked right from the start and who was not linked to the National Party. We were happy about Rumpff's decision.

After the success of this first maneuver, we tried a second, nearly as risky. We began a long and detailed argument contesting the indictment itself. We claimed, among other things, that the indictment was vague and lacked particularity. We also argued that the planning of violence was necessary to prove high treason, and the prosecution needed to provide examples of its claim that we intended to act violently. It became apparent by the end of our argument that the three judges agreed. In August, the